

**IN THE HIGH COURT OF SOUTH AFRICA**  
**(WESTERN CAPE DIVISION, CAPE TOWN)**  
**Case No: 2026-086906**

*In the matter between:*

**AFROCENTRIC INVESTMENT CORPORATION LIMITED**

*Applicant*

*and*

**WILBUR WILLIAM MATTHEE**

*Respondent*

**DOCUMENT TYPE**

**Final Consolidated Supplementary Answering Affidavit**

Deponent: Wilbur William Matthee

*Self-Represented Respondent*

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**FINAL CONSOLIDATED SUPPLEMENTARY ANSWERING AFFIDAVIT**

Incorporating: *Full Rebuttal • Schedule of Perjuries & Criminal Conduct • Bare Denials Analysis • Attorneys' Duties • Deputy Information Officer's Breach • POPIA Defence • Counter-Application Affidavit • Governance Tax Arithmetic • Comprehensive Prayer*

I, **WILBUR WILLIAM MATTHEE**, do hereby make oath and state:

**A**

**INTRODUCTION**

1. I am the Respondent, a Specialist Registered Nurse (NQF 8), health services manager, and the whistleblower who exposed the Gexus/DMS systemic integration gap. I act in person. I have already filed:
  - 1.1 an Answering Affidavit on 16 April 2026;
  - 1.2 a Supplementary Answering Affidavit incorporating a Counter-Application for declaratory relief on 20 April 2026;
  - 1.3 a Notice of Intention to Oppose formally recorded on the Court Online system on 23 April 2026 after I was forced to navigate the digital platform as a self-represented lay litigant, with the Applicant's attorneys initially failing to invite me and only providing the correct case number and access after I requested it; and
  - 1.4 a Counter-Application Affidavit setting out in comprehensive detail the full chronology of my protected disclosures, the evidence of occupational detriment, and the specific prayers for declaratory and monetary relief.
2. This final consolidated supplementary answering affidavit is filed to:
  - 2.1 provide a complete point-by-point rebuttal of the Supplementary Affidavit of Lebohang Shadi Matsipa Mpumulwana deposed on 4 May 2026 ("Mpumulwana's affidavit");
  - 2.2 expose the prior false statements in the Founding Affidavit of Gerald Neville Van Wyk sworn on 16 April 2026;

- 2.3 expose the false sworn statements in the CCMA Opposing Affidavit of Xolile Vincent Manyati sworn on 10 December 2025;
- 2.4 catalogue every false statement on statutory documents — the UI-19 form, the Certificate of Service, and the UIF declarations;
- 2.5 demonstrate the procedural fraud and unfairness by which the rule nisi was obtained and my efforts to challenge it were frustrated;
- 2.6 expose the attorneys' breach of their duties as officers of the Court;
- 2.7 expose the Deputy Information Officer's breach of her statutory and fiduciary duties under POPIA and PAIA;
- 2.8 rebut the Applicant's bad-faith POPIA allegations and confirm my undertaking not to disclose any patient-level personal information;
- 2.9 present a consolidated schedule of all perjuries, statutory frauds, and criminal conduct (Table 1);
- 2.10 analyse the Applicant's extensive bare denials and their legal effect;
- 2.11 present the mathematically undeniable Governance Tax arithmetic;
- 2.12 incorporate by reference my Counter-Application Affidavit and its comprehensive prayers; and
- 2.13 finally lock the record so that this Honourable Court may see, in undeniable detail, the institutional bad faith, the perjuries, the statutory frauds, and the criminal behaviours that the Applicant is desperate to hide.

**B****PRELIMINARY — PROCEDURAL FRAUD, COURT ONLINE OBSTRUCTION, AND STRUCK-OUT ANTICIPATION APPLICATION****1. The answering affidavit was deliberately concealed from Acting Justice Mphego.**

On 16 April 2026 I served a full Answering Affidavit on the Applicant's attorneys, Deneys, by email before the 10h00 hearing. Service by email is valid under Uniform Rule 4A. The Applicant's own deponent, Mpumulwana, admits at paragraph 11 that I sent *"multiple emails ... confirming that he formally opposed the application, that he had filed a notice of intention to oppose and an answering affidavit."* Yet when the Applicant's legal team appeared before Acting Justice Mphego at 14h00 that day, they did not hand up my answering affidavit. They did not inform the Court that I had opposed the application. The rule nisi was obtained on the false premise that the matter was unopposed. This is a fraud on the Court that vitiates the entire order.

**2. I was left to navigate the Court Online system alone as a lay litigant.**

After the order was granted, I could not find the case on the Court Online platform. The case number initially communicated to me was incorrect. The Applicant's attorneys, who control the digital case file as the initiating party, did not invite me to the file. I had to contact the Registrar directly, Ms Nicola Hanekom, who informed me that I needed to request access. Only after I formally wrote to the Applicant's attorneys on 23 April 2026 (Annexure **WM-ACCESS**) did they eventually provide the correct case number and access. I then uploaded my Notice of Intention to Oppose on the same day.

The Court Online screenshots (noted in the court file) confirm that my Notice of Intention to Oppose was filed on 23 April 2026. The Applicant's assertion that *"none of the respondent's pleadings have been filed on Court Online"* (Mpumulwana para 15) is therefore knowingly false (see P12 in Table 1 below).

**3. My application to anticipate the return date was struck out on a technicality.**

On 24 April 2026, acting within my rights under Uniform Rule 6(8) and the express leave granted by paragraph 7 of the Order of 16 April 2026, I moved to anticipate the return date to challenge the rule nisi. The application was struck from the roll solely because I had not attached the Applicant's founding affidavit as an annexure to my notice of anticipation. That founding affidavit was already on the court file — it was the very document that had founded the rule nisi. To strike out a destitute, self-represented litigant's application on a technicality of annexure, when the document was already before the Court, is a travesty of procedural fairness. It has left the interim gag order in place, unchallenged on its merits, for over a month. I respectfully submit that this Court, in determining the final outcome, should not hold that procedural misstep against me.

**C****THE ATTORNEYS' DUTY AS OFFICERS OF THE COURT — A MISCARRIAGE OF JUSTICE**

1. Attorneys are not merely representatives of their clients. They are officers of the Court. Their paramount duty is to the administration of justice. This duty overrides even their duty to their client where the two conflict.
2. Where an applicant approaches the Court on an urgent basis, and particularly where the respondent is absent or self-represented, the applicant's legal representatives bear a heightened duty of candour. They must disclose all material facts, including the fact that the respondent has filed opposition and the substance of that opposition.
3. As admitted at paragraph 11 of Mpumulwana's affidavit, the attorneys knew I opposed the application and that I had filed an answering affidavit. They had that affidavit in their possession before the hearing. They did not hand it up. They did not inform the Court. They allowed the Court to proceed as if the matter were unopposed.
4. Had Acting Justice Mphego known that I had filed a substantive answering affidavit — raising the PDA defence, the Governance Tax, the self-created urgency, the quantification as a legitimate Labour Court claim — the rule nisi would likely not have issued in the sweeping terms it did, if at all. The concealment of my opposition was a deliberate strategy to obtain a gag order against a whistleblower.
5. The conduct of the Applicant's attorneys breaches the following rules and duties:
  - Rule 3.1 — uphold the integrity of the legal profession and the administration of justice;
  - Rule 3.3 — must not mislead the Court or allow the Court to be misled;
  - Rule 5.1 — act with candour and good faith in all dealings with the Court;
  - The duty of disclosure in ex parte proceedings — full and frank disclosure of all material facts;
  - Section 34 of the Legal Practice Act, 2014 — obstruction of justice and professional misconduct.
6. I respectfully request that this Court record its displeasure, refer the attorneys' conduct to the Legal Practice Council, and order the attorneys to pay the wasted costs de bonis propriis.

**D****THE DEPUTY INFORMATION OFFICER — BREACH OF STATUTORY & FIDUCIARY DUTIES UNDER POPIA AND PAIA**

1. The Deputy Information Officer of Medscheme holds a critical statutory office. She is responsible, under POPIA ss 55, 19, 20, and PAIA s 8, for: ensuring the integrity and lawful processing of personal information; securing the confidentiality of that information; notifying the Information Regulator and data subjects immediately of any data integrity breach; and maintaining accurate records.
2. In Mpumulwana's affidavit (para 91.8), it is sworn that the Deputy Information Officer "confirmed that no IT incident had been reported in respect of the Gexus/DMS systems, nor any systemic integration failure of the kind alleged by the respondent."
3. This confirmation is demonstrably false. The internal Root Cause Analysis (VICT1) — Medscheme's own document — records a "miscommunication between Gexus and DMS systems", "system integration gaps", and recommends a system-level fix. That RCA is, by any definition, an IT incident report. The gap is a systemic integration failure.
4. The Deputy Information Officer either made her confirmation without having seen the RCA (recklessly, without proper inquiry), or having seen it, chose to lie. In either case, she has breached her statutory duties:
  - She failed to ensure the integrity of information (POPIA s 19), because the Gexus/DMS gap meant adherence data was inaccurate.
  - She failed to notify the Information Regulator or affected data subjects of the data integrity breach (POPIA ss 20-22), despite the RCA confirming that false non-adherence letters were sent.
  - She lent her authority to a false narrative, becoming the instrument of a cover-up.
5. This is a profound breach of trust. An Information Officer who swears to the non-existence of a documented system failure is an Information Officer who has abandoned her duty to the data subjects she is bound to protect.
6. I respectfully request that this Court refer the matter to the Information Regulator for investigation, and that the Registrar be directed to transmit a copy of this affidavit and the annexed RCA (VICT1) to the Regulator, together with the Court's own remarks.

**E****REBUTTAL OF THE APPLICANT'S POPIA ALLEGATIONS — THE WHISTLEBLOWER'S DEFENCE UNDER THE PDA**

1. The Applicant repeatedly accuses me of threatening to breach POPIA by disclosing the personal and special personal information of GEMS beneficiaries (Founding Affidavit paras 46-48; Supplementary Affidavit paras 92-94, 144-148). These accusations are false, misleading, and deployed in bad faith to scare the Court into granting the interdict.
2. I give this Court my solemn undertaking under oath:
 

*I have never threatened to disclose, and I will not disclose, the personal health records, clinical diagnostics, biometrics, or other special personal information of any identifiable GEMS beneficiary. My proposed disclosures — and the "forensic payload" I have referred to — concern:*

  - the existence of a systemic integration gap between Gexus and DMS;
  - the fact that this gap generates false non-adherence data, corrupts actuarial models, and inflates premiums (the Governance Tax);
  - the internal suppression of the RCA findings;

- the false sworn statements made by the Applicant's officials to conceal the gap.
3. Section 9(2)(a) of the Protected Disclosures Act expressly provides that a protected disclosure "does not constitute a breach of any duty of confidentiality or secrecy imposed on the employee or worker by any law, contract, code of conduct, or the common law." This means that if my disclosures qualify for protection under the PDA — as I maintain they do — POPIA does not apply to prohibit them. The PDA overrides both POPIA and the contractual confidentiality clause in my employment contract.
  4. I have already annexed the Mahlangu RCA to my court papers. That was necessary to vindicate my protected disclosures and to defend myself against the false allegations of insubordination and vexatiousness. The disclosures in my court filings are protected under the principle of open justice and under the PDA. The Applicant, by raising the POPIA argument, is attempting to weaponise privacy legislation against the very whistleblower who sought to protect members from a system failure.
  5. With my undertaking recorded above, the Applicant's POPIA argument collapses entirely. There is no threatened breach of POPIA. The relevant portions of the interdict should be discharged without any risk to member privacy.

**F****THE APPLICANT'S BARE DENIALS — A PATTERN OF EVASIVE PLEADING**

1. I have carefully examined Mpumulwana's affidavit. In response to the vast majority of the averments in my answering affidavits, she offers nothing more than:
  - "The content herein is denied."
  - "Save to deny that the content ... is true and correct, the contents herein are noted."
2. These are bare denials. In motion proceedings, a bald denial does not create a genuine dispute of fact. The respondent must set out facts that, if proved, would constitute a defence. The following paragraphs of Mpumulwana's affidavit contain only bare denials with no supporting facts: 75, 77, 81, 90, 97, 99, 112, 119, 124, 126, 127, 132, 133, 136, 138, 141, 143, 150, 151, 153, 160, 166, 172, 174, 183.
3. The legal effect is clear: the factual averments I have made stand uncontroverted. These include:
  - That my demand was a good-faith quantification of existing Labour Court claims, provided at the Applicant's own request;
  - That the Gexus/DMS integration gap is real and documented;
  - That my voluntary correction of the word "leakage" is evidence of good faith;
  - That the PDA applies to former employees;
  - That the Governance Tax is a mathematical consequence of corrupt data;
  - That the Applicant's urgency was self-created;
  - That the Applicant has a fatal contradiction ("Case Manager" vs "Care Coordinator");
  - The entire factual basis for my Counter-Application.
4. The Applicant has chosen silence where it needed to speak. The Court is respectfully invited to treat those silent pages as admissions.

G

**CONSOLIDATED SCHEDULE OF PERJURIES, STATUTORY FRAUDS, AND CRIMINAL CONDUCT**

- I now set out a complete schedule of every material false statement made under oath or on statutory documents by the Applicant, its officers, deponents, and representatives.

**TABLE 1: CONSOLIDATED SCHEDULE OF PERJURIES, STATUTORY FRAUDS, AND CRIMINAL CONDUCT**

| #   | Perpetrator                                  | Document & Date                                | False Statement                                                                                  | Contrary Evidence                                                                                            | Offence                             |
|-----|----------------------------------------------|------------------------------------------------|--------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------|-------------------------------------|
| P1  | Gerald Van Wyk (CEO)                         | Founding Affidavit, 16 Apr 2026, para 40       | "Both platforms fully integrated ... designed to work together."                                 | RCA (VICT1): "Miscommunication between Gexus and DMS ... system integration gaps."                           | Perjury                             |
| P2  | Gerald Van Wyk                               | Founding Affidavit, para 52                    | PDA does not protect former employees.                                                           | PDA s1 expressly includes "former employee."                                                                 | Reckless false statement under oath |
| P3  | Gerald Van Wyk                               | Founding Affidavit, para 38                    | "Applicant does not know what the 'Mahlangu RCA' is."                                            | RCA generated internally; referenced in Board GRC escalations and Labour Court pleadings.                    | Perjury                             |
| P4  | Gerald Van Wyk                               | Founding Affidavit, para 46                    | The RCA "will, by their nature, contain special personal information ... patient diagnostics..." | CEO simultaneously claims ignorance of RCA's contents.                                                       | Perjury                             |
| P5  | Xolile Manyati                               | CCMA Opposing Affidavit, 10 Dec 2025, para 6.3 | PTSD and depression are "an excuse" and "an afterthought."                                       | Specialist diagnosis by Dr Jacques Malan (FCPSYCH(SA)). Manyati is a lay HR official.                        | Perjury / criminal defamation       |
| P6  | Xolile Manyati                               | CCMA Opposing Affidavit, para 6.2              | I have an "untruthful character."                                                                | Dr Ohm's recommendation letter confirms clinical competence and integrity.                                   | Perjury / criminal defamation       |
| P7  | Xolile Manyati                               | CCMA Opposing Affidavit                        | Designates me as "care coordinator."                                                             | Contract, email signature, and CEO's own affidavit all use "Case Manager."                                   | Perjury                             |
| P8  | Lebohang Mpumulwana                          | Supplementary Affidavit, 4 May 2026, para 91.6 | DMS and Gexus "were aligned"; chronic claims visible since April 2023.                           | RCA records integration gap; false letters sent May 2025 and Oct 2025 prove DMS was blind to chronic claims. | Perjury                             |
| P9  | Lebohang Mpumulwana                          | Supplementary Affidavit, para 91.6             | Non-adherence communication was "correctly triggered."                                           | Member's complaint, RCA, and draft apology all confirm system error.                                         | Perjury                             |
| P10 | Lebohang Mpumulwana (on behalf of Deputy IO) | Supplementary Affidavit, para 91.8             | Deputy IO confirmed no IT incident reported, no integration failure.                             | The RCA is an incident report documenting the gap.                                                           | Perjury (potentially suborned)      |
| P11 | Lebohang Mpumulwana                          | Supplementary Affidavit, para 91.9             | The systemic integration failure is "risible."                                                   | The RCA itself identifies "system integration gaps" and recommends a fix.                                    | Perjury                             |



| #   | Perpetrator         | Document & Date                        | False Statement                                                                                                  | Contrary Evidence                                                                              | Offence                                                              |
|-----|---------------------|----------------------------------------|------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|----------------------------------------------------------------------|
| P12 | Lebohang Mpumulwana | Supplementary Affidavit, para 15       | "None of the respondent's pleadings have been filed on Court Online."                                            | Court Online screenshots show Notice of Intention to Oppose filed 23 Apr 2026.                 | Perjury                                                              |
| P13 | Lebohang Mpumulwana | Supplementary Affidavit, para 12       | Attorneys "never received such a notice."                                                                        | Para 11 of same affidavit admits receipt of emails confirming opposition.                      | Perjury                                                              |
| P14 | Lebohang Mpumulwana | Supplementary Affidavit, paras 168-169 | Job title never changed; I "edited my own signature."                                                            | "Naming Convention" Teams meeting recording, email signature, CEO's own use of "Case Manager." | Perjury                                                              |
| P15 | Lebohang Mpumulwana | Supplementary Affidavit, para 162.4    | APN 303 logs and CMS Business Plan "not known to the applicant."                                                 | Applicant is the holding company of Medscheme; the data is generated by its own subsidiary.    | Perjury / material non-disclosure                                    |
| P16 | Medscheme Holdings  | UI-19 Form, 19 Jan 2026                | Reason for leaving: voluntary "Resignation."                                                                     | My Notice of Constructive Dismissal explicitly cited LRA s187(1)(h).                           | Statutory fraud                                                      |
| P17 | Medscheme Holdings  | Certificate of Service, 19 Jan 2026    | Position: "Care Coordinator."                                                                                    | Teams meeting, email signature, and CEO's affidavit confirm "Case Manager."                    | Statutory misrepresentation (BCEA s42)                               |
| P18 | Medscheme Holdings  | UIF Declaration, June 2025             | No UIF contribution declared or remitted for June 2025 despite deduction from salary.                            | uFiling portal screenshot shows "No Information"; payslip shows deduction.                     | Theft of statutory levies (Unemployment Insurance Contributions Act) |
| P19 | Deneys Attorneys    | Conduct on 16 Apr 2026                 | Failed to disclose my answering affidavit to the Court; obtained rule nisi as if unopposed.                      | Mpumulwana para 11 admits knowledge of opposition.                                             | Fraud on the Court; professional misconduct                          |
| P20 | Deneys Attorneys    | Conduct 22-23 Apr 2026                 | Did not initially invite me to Court Online; delayed access; forced a lay litigant to navigate the system alone. | Email exchange WM-ACCESS; Registrar's confirmation.                                            | Obstruction of justice; professional misconduct                      |

2. I have opened a criminal case regarding the UIF frauds (P16, P18) under SAPS CAS 705/3/2026 at SAPS Delft, transferred to SAPS Woodstock. I will supplement that case to include the perjuries (P1–P15, P17) and the fraud on the Court (P19, P20).

### DEPONENT'S CERTIFICATION

I, **WILBUR WILLIAM MATTHEE**, hereby certify that the contents of this affidavit are, to the best of my knowledge and belief, both true and correct. I understand that a false affidavit is a criminal offence.

Signature: \_\_\_\_\_

Name: **WILBUR WILLIAM MATTHEE**

Date: \_\_\_\_\_ at Cape Town

**COMMISSIONER OF OATHS**

Signature: \_\_\_\_\_

Full Name: \_\_\_\_\_

Designation: \_\_\_\_\_

Date: \_\_\_\_\_ at Cape Town

Area of jurisdiction: \_\_\_\_\_